BRENDAN NGEHSI NEWANFORBI
Plaintiff, In Pro Per
1455 Cat Tail Drive
Stockton, California 95204
Telephone: (209) 801-4442
Email: bnn.cdl@gmail.com

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. **FEDERAL EXPRESS CORPORATION,** and DOES 1 through 10, inclusive, Defendants.	**Case No. 2:26-cv-02881-DAD-SCR** **PLAINTIFF'S FIRST SET OF REQUESTS FOR ADMISSION TO DEFENDANT FEDERAL EXPRESS CORPORATION** Assigned to Hon. Dale A. Drozd Magistrate Judge Sean C. Riordan

Plaintiff's First Set of Requests for Admission to Defendant Federal Express Corporation

Pursuant to Federal Rules of Civil Procedure 26 and 36, Plaintiff requests that Defendant Federal Express Corporation admit or deny the following matters. If Defendant cannot truthfully admit or deny a matter in full, it must admit the portion that is true and specifically deny or qualify the remainder.

Definitions

These requests use the following definitions solely for discovery:

You, Your, Defendant, or FedEx: Federal Express Corporation and its employees, agents, representatives, departments, databases, and persons acting on its behalf concerning Plaintiff's application or background screening.

Plaintiff: Brendan Ngehsi Newanforbi.

2025 Application: Plaintiff's application completed on or about January 8, 2025, associated with FEDEX GROUND HR, the March 10, 2025 pre-adverse-action notice, and the March 19, 2025 adverse action.

Report: every consumer report, investigative consumer report, background-screening result, component result, source record, attachment, score, adjudication result, notice, and updated version concerning Plaintiff that First Advantage prepared, maintained, or transmitted in connection with the 2025 Application.

Registry Information: information identifying or describing Plaintiff as a sex-offender registrant, or referring to NSOPW, the National Sex Offender Public Website, a national sex-offender-registry search, the California Sex Offender Registry, California's Megan's Law website, Penal Code section 220(a)(1), or registration status.

Prior FedEx Application: every application by Plaintiff before the 2025 Application for employment or engagement with Defendant or a FedEx-affiliated entity whose records are in Defendant's possession, custody, or control.

Document: the broad meaning in Federal Rule of Civil Procedure 34(a), including electronically stored information, native files, email, messaging, database entries, audit logs, metadata, reports, notes, and paper records.

Identify a person: state the person's name, title, employer, role concerning the subject matter, and last known business contact information.

Identify a document: state its date, author, recipients, title or description, custodian, and Bates number if produced.

Instructions

- Respond separately and fully in writing within 30 days after service, subject to any different deadline fixed by rule, stipulation, or court order.

- If you object to any portion, state the specific ground and respond to every unobjectionable portion. Do not withhold responsive material based only on a general objection.

- If information is unavailable after a reasonable inquiry, describe the inquiry and state what information remains unavailable.

- These requests are continuing to the extent required by Federal Rule of Civil Procedure 26(e).

Plaintiff's First Set of Requests for Admission to Defendant Federal Express Corporation

REQUEST FOR ADMISSION NO. 1: Admit that Plaintiff completed an employment application associated with FEDEX GROUND HR in January 2025.

REQUEST FOR ADMISSION NO. 2: Admit that Defendant caused First Advantage to conduct a background screening concerning Plaintiff in connection with the 2025 Application.

REQUEST FOR ADMISSION NO. 3: Admit that First Advantage provided a Report concerning Plaintiff to Defendant on or before March 10, 2025.

REQUEST FOR ADMISSION NO. 4: Admit that Plaintiff received a pre-adverse-action notice on or about March 10, 2025 because Defendant was considering information in the Report.

REQUEST FOR ADMISSION NO. 5: Admit that Defendant withdrew Plaintiff's conditional employment opportunity on or about March 19, 2025.

REQUEST FOR ADMISSION NO. 6: Admit that the Report referenced the National Sex Offender Public Website or a national sex-offender-registry search.

REQUEST FOR ADMISSION NO. 7: Admit that the Report referenced the California sex-offender website or California Sex Offender Registry.

REQUEST FOR ADMISSION NO. 8: Admit that the Report identified a conviction under California Penal Code section 220(a)(1).

REQUEST FOR ADMISSION NO. 9: Admit that the Report identified Plaintiff as a person required to register as a sex offender in California.

REQUEST FOR ADMISSION NO. 10: Admit that at least one FedEx employee or agent reviewed Registry Information concerning Plaintiff before the March 19, 2025 adverse action.

REQUEST FOR ADMISSION NO. 11: Admit that Registry Information was considered in connection with the 2025 Application.

REQUEST FOR ADMISSION NO. 12: Admit that Defendant was not required by law to conduct a sex-offender-registry search for the position associated with the 2025 Application.

REQUEST FOR ADMISSION NO. 13: Admit that no law categorically prohibited Defendant from hiring Plaintiff for the position associated with the 2025 Application.

REQUEST FOR ADMISSION NO. 14: Admit that the position associated with the 2025 Application did not require Plaintiff to work directly and unaccompanied with minor children on more than an incidental basis.

REQUEST FOR ADMISSION NO. 15: Admit that neither the pre-adverse-action notice nor the final adverse-action notice identified a particular person allegedly at risk from Plaintiff's employment.

REQUEST FOR ADMISSION NO. 16: Admit that neither the pre-adverse-action notice nor the final adverse-action notice stated that Plaintiff was rejected because of an application misrepresentation.

REQUEST FOR ADMISSION NO. 17: Admit that Defendant's Answer alleges that Plaintiff answered 'NO' to an application question concerning sex-based offenses.

REQUEST FOR ADMISSION NO. 18: Admit that Defendant did not ask Plaintiff to explain or correct the alleged application misrepresentation before taking final adverse action.

REQUEST FOR ADMISSION NO. 19: Admit that Plaintiff had previously applied for employment or engagement with a FedEx entity before the 2025 Application.

REQUEST FOR ADMISSION NO. 20: Admit that Plaintiff had previously been hired or permitted to begin work for a FedEx entity before the 2025 Application.

REQUEST FOR ADMISSION NO. 21: Admit that Defendant or a FedEx-affiliated entity possesses records of Plaintiff's prior FedEx applications or work.

REQUEST FOR ADMISSION NO. 22: Admit that First Advantage performed the 2025 background screening at Defendant's request and for Defendant's employment purposes.

REQUEST FOR ADMISSION NO. 23: Admit that Defendant possesses no contemporaneous document created before March 19, 2025 stating that an application misrepresentation, standing alone, required rejection of Plaintiff.

REQUEST FOR ADMISSION NO. 24: Admit that Defendant contends it would have rejected Plaintiff even if the Report had contained no Registry Information.

REQUEST FOR ADMISSION NO. 25: Admit that the assertion in Request No. 24 depends on information Defendant knew before the March 19, 2025 adverse action.

REQUEST FOR ADMISSION NO. 26: Admit that Defendant has not identified any person to Plaintiff who was allegedly protected from risk by denying Plaintiff the position.

REQUEST FOR ADMISSION NO. 27: Admit that Defendant's September 24, 2026 status report states that Plaintiff's application contained material misrepresentations that independently justified the hiring decision.

REQUEST FOR ADMISSION NO. 28: Admit that Defendant's claim of an independent justification can be evaluated from Defendant's application, screening, adjudication, and decision records.

Dated: September 25, 2026

/s/ Brendan Ngehsi Newanforbi
BRENDAN NGEHSI NEWANFORBI
Plaintiff, In Pro Per

Certificate of Service

I declare that on September 25, 2026, I served a true copy of **Plaintiff's First Set of Requests for Admission to Defendant Federal Express Corporation** on counsel for Defendant Federal Express Corporation as indicated below:

Allison A. Kray, Senior Attorney
Federal Express Corporation Legal Department
2601 Main Street, Suite 1100
Irvine, California 92614
allison.kray@fedex.com

[ ] By email, pursuant to the parties' written agreement to electronic service.
[ ] By first-class United States mail, postage fully prepaid.

I declare under penalty of perjury under the laws of the United States that the foregoing is true and correct. Executed on September 25, 2026, at _____, California.

_____
BRENDAN NGEHSI NEWANFORBI